



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

SB 1566: malicious delay; enforcement; penalty

WENINGER FLOOR AMENDMENT

1. Modifies the provisions outlining the county prohibitions on malicious delays to mirror the municipal prohibitions on malicious delays.

WENINGER FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1566
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 9, chapter 4, article 8, Arizona Revised Statutes,
3 is amended by adding section 9-500.54, to read:

4 9-500.54. Malicious delay; attorney general; violation; civil
5 penalty; definitions

6 A. NOTWITHSTANDING ANY OTHER LAW, A CITY OR TOWN IN THIS STATE MAY
7 NOT MALICIOUSLY DELAY ADOPTED LICENSING TIME FRAMES PURSUANT TO SECTION
8 9-835 FOR SINGLE-FAMILY RESIDENTIAL CONSTRUCTION OR A RESPONSE TO AN
9 APPLICATION FOR SINGLE-FAMILY RESIDENTIAL CONSTRUCTION.

10 B. THE ATTORNEY GENERAL, BASED ON A WRITTEN COMPLAINT BY A PROPERTY
11 OWNER WITH AN APPLICATION BEFORE A CITY OR TOWN, MAY ENFORCE THIS SECTION.

12 C. FOLLOWING AN INVESTIGATION AND FINDINGS BY THE ATTORNEY GENERAL,
13 A CITY OR TOWN IN THIS STATE THAT IS FOUND TO HAVE VIOLATED THIS SECTION
14 BY CLEAR AND CONVINCING EVIDENCE IS SUBJECT TO A CIVIL PENALTY OF \$5,000
15 PER VIOLATION REGARDLESS OF THE DURATION OF THE DELAY.

16 D. THIS SECTION DOES NOT MODIFY THE AUTHORITY OF A BUILDING CODE
17 OFFICIAL TO WITHHOLD A CERTIFICATE OF OCCUPANCY IN ACCORDANCE WITH A
18 CITY'S OR TOWN'S ADOPTED CODES AND ORDINANCES.

19 E. IF THE ATTORNEY GENERAL FINDS THAT A CITY OR TOWN VIOLATED THIS
20 SECTION, THE CITY OR TOWN MAY BRING AN ACTION IN A COURT WITH APPROPRIATE
21 JURISDICTION TO CHALLENGE THE FINDING OF A MALICIOUS DELAY.

22 F. FOR THE PURPOSES OF THIS SECTION:

23 1. "APPLICATION" MEANS A SITE PLAN, DEVELOPMENT PLAN, LAND
24 DIVISION, LOT LINE ADJUSTMENT, LOT TIE, PRELIMINARY PLAT, FINAL PLAT, PLAT
25 AMENDMENT OR BUILDING PERMIT FOR SINGLE-FAMILY RESIDENTIAL CONSTRUCTION.

26 2. "MALICIOUS":

27 (a) MEANS ACTING WITH SPECIFIC INTENT TO OBSTRUCT APPROVAL OF AN
28 APPLICATION BY IMPOSING REQUIREMENTS NOT SPECIFICALLY AUTHORIZED BY CODE,

1 ORDINANCE, STANDARD OR OTHER LEGAL REQUIREMENTS, REPEATED UNEXPLAINED
2 DELAYS OF MORE THAN TWICE THE CITY'S OR TOWN'S ADOPTED LICENSING TIME
3 FRAME PURSUANT TO SECTION 9-835 FOR SINGLE-FAMILY RESIDENTIAL CONSTRUCTION
4 OR DELAYS RESULTING FROM OTHER PENDING APPLICATIONS BY THE SAME APPLICANT.

5 (b) DOES NOT INCLUDE ANY DELAYS DUE TO RESOURCE CONSTRAINTS, DELAYS
6 CAUSED BY THE APPLICANT OR A THIRD PARTY, GOOD FAITH ERRORS OR ENFORCEMENT
7 OF ADOPTED TECHNICAL CODES, INCLUDING FIRE, BUILDING, TRANSPORTATION AND
8 TRAFFIC, UTILITIES FACILITIES AND PUBLIC NUISANCE CODES, ORDINANCES OR
9 STANDARDS.

10 Sec. 2. Title 11, chapter 2, article 4, Arizona Revised Statutes,
11 is amended by adding section 11-269.31, to read:

12 11-269.31. Malicious delay: attorney general: violation:
13 civil penalty: definitions

14 A. NOTWITHSTANDING ANY OTHER LAW, A COUNTY IN THIS STATE MAY NOT
15 MALICIOUSLY DELAY ~~[A RESPONSE TO A LICENSE, APPROVAL OR PERMIT OR ANY~~
16 ~~SIMILAR APPLICATION OR REQUEST]~~ ~~[ADOPTED LICENSING TIME FRAMES FOR~~
17 ~~SINGLE-FAMILY RESIDENTIAL CONSTRUCTION OR A RESPONSE TO AN APPLICATION FOR~~
18 ~~SINGLE-FAMILY RESIDENTIAL CONSTRUCTION].~~

19 B. THE ATTORNEY GENERAL ~~[OR COUNTY ATTORNEY]~~ ~~[, BASED ON A WRITTEN~~
20 ~~COMPLAINT BY A PROPERTY OWNER WITH AN APPLICATION BEFORE A COUNTY.]~~ MAY
21 ENFORCE THIS SECTION.

22 C. ~~[FOLLOWING AN INVESTIGATION AND FINDINGS BY THE ATTORNEY~~
23 ~~GENERAL.]~~ A COUNTY IN THIS STATE THAT ~~[VIOLATES]~~ ~~[IS FOUND TO HAVE~~
24 ~~VIOLATED]~~ THIS SECTION ~~[BY CLEAR AND CONVINCING EVIDENCE]~~ IS SUBJECT TO A
25 CIVIL PENALTY OF \$5,000 PER VIOLATION ~~[REGARDLESS OF THE DURATION OF THE~~
26 ~~DELAY].~~

27 ~~[D. THIS SECTION DOES NOT MODIFY THE AUTHORITY OF A BUILDING CODE~~
28 ~~OFFICIAL TO WITHHOLD A CERTIFICATE OF OCCUPANCY IN ACCORDANCE WITH A~~
29 ~~COUNTY'S ADOPTED CODES AND ORDINANCES.]~~

30 ~~[D.]~~ ~~[E.]~~ IF THE ATTORNEY GENERAL ~~[OR THE COUNTY ATTORNEY]~~ FINDS
31 THAT A COUNTY VIOLATED THIS SECTION, THE COUNTY MAY BRING AN ACTION IN A
32 COURT WITH APPROPRIATE JURISDICTION TO CHALLENGE THE FINDING OF A
33 MALICIOUS DELAY.

34 ~~[F.]~~ ~~[F.]~~ FOR THE PURPOSES OF THIS SECTION~~[,]~~ ~~[:]~~

35 1. "APPLICATION" MEANS A SITE PLAN, DEVELOPMENT PLAN, LAND
36 DIVISION, LOT LINE ADJUSTMENT, LOT TILE, PRELIMINARY PLAT, FINAL PLAT,
37 PLAT AMENDMENT OR BUILDING PERMIT FOR SINGLE-FAMILY RESIDENTIAL
38 CONSTRUCTION.

39 2.] "MALICIOUS":

40 ~~[1.]~~ ~~[(a)]~~ MEANS ACTING ~~[IN BAD FAITH OR]~~ WITH SPECIFIC INTENT TO
41 OBSTRUCT APPROVAL OF ~~[A LICENSE, APPROVAL OR PERMIT OR ANY SIMILAR]~~ ~~[AN]~~
42 ~~APPLICATION~~ ~~[OR REQUEST]~~ BY IMPOSING REQUIREMENTS NOT SPECIFICALLY
43 AUTHORIZED BY CODE, ORDINANCE OR STANDARD OR ~~[ENGAGING IN SELECTIVE~~
44 ~~ENFORCEMENT, REPEATED UNEXPLAINED DELAYS OR ACTIONS TAKEN WITHOUT A~~
45 ~~LEGITIMATE HEALTH, SAFETY OR PLANNING CONCERN]~~ ~~[OTHER LEGAL REQUIREMENTS,~~
46 ~~REPEATED UNEXPLAINED DELAYS OF MORE THAN TWICE THE COUNTY'S ADOPTED~~

1 LICENSING TIME FRAME FOR SINGLE-FAMILY RESIDENTIAL CONSTRUCTION OR DELAYS
2 RESULTING FROM OTHER PENDING APPLICATIONS BY THE SAME APPLICANT].

3 [2.] [(b)] DOES NOT INCLUDE ANY DELAYS DUE TO RESOURCE CONSTRAINTS,
4 [DELAYS CAUSED BY THE APPLICANT OR A THIRD PARTY.] GOOD FAITH ERRORS OR
5 ENFORCEMENT OF [IDENTIFIED] [ADOPTED TECHNICAL] CODES, [INCLUDING FIRE,
6 BUILDING, TRANSPORTATION AND TRAFFIC, UTILITIES FACILITIES AND PUBLIC
7 NUISANCE CODES.] ORDINANCES OR STANDARDS.

8 Sec. 3. Title 12, chapter 8, article 2.1, Arizona Revised Statutes,
9 is amended by adding section 12-1139, to read:

10 12-1139. Property right claims; malicious delay; land use
11 claims; expedited review; definitions

12 A. A PLAINTIFF THAT FILES A COMPLAINT IN SUPERIOR COURT THAT
13 ASSERTS A MALICIOUS DELAY CLAIM PURSUANT TO SECTIONS 9-500.54 OR 11-269.31
14 FOR A SINGLE-FAMILY RESIDENTIAL APPLICATION IS ENTITLED TO EXPEDITED
15 JUDICIAL REVIEW OF THE CLAIM.

16 B. WITHIN TEN CALENDAR DAYS AFTER THE SERVICE OF THE COMPLAINT, THE
17 COURT SHALL SET AN INITIAL CASE MANAGEMENT CONFERENCE WITH THE PARTIES TO
18 ESTABLISH AN EXPEDITED SCHEDULE FOR DISCOVERY, BRIEFING AND HEARINGS.

19 C. UNLESS OTHERWISE ORDERED FOR GOOD CAUSE, ALL FACT DISCOVERY IN
20 THE ACTION SHALL BE COMPLETED AS EXPEDITIOUSLY AS POSSIBLE AFTER THE
21 INITIAL CASE CONFERENCE.

22 D. THE COURT SHALL CONSIDER AND RULE ON ALL MOTIONS FOR SUMMARY
23 JUDGMENT OR OTHER DISPOSITIVE MOTIONS AS SOON AS PRACTICABLE.

24 E. THE COURT SHALL SET A TRIAL OR FINAL HEARING DATE AS SOON AS
25 PRACTICABLE AFTER THE CASE MANAGEMENT CONFERENCE, ABSENT A FINDING OF GOOD
26 CAUSE.

27 F. AN APPEAL TO THE COURT OF APPEALS FROM A SUPERIOR COURT JUDGMENT
28 IN AN ACTION DESCRIBED IN SUBSECTION A OF THIS SECTION IS ENTITLED TO A
29 SCHEDULING PREFERENCE ON THE APPELLATE DOCKET, AND THE COURT OF APPEALS
30 SHALL EXPEDITE BRIEFING SCHEDULES AND ORAL ARGUMENT CONSISTENT WITH THE
31 INTERESTS OF JUSTICE UNLESS THE COURT FINDS FOR GOOD CAUSE THAT EXPEDITED
32 REVIEW IS NOT FEASIBLE.

33 G. A PARTY MAY PETITION FOR SPECIAL ACTION RELIEF IN THE COURT OF
34 APPEALS OR SUPREME COURT AND SUCH ACTIONS SHALL RECEIVE EXPEDITED
35 PROCESSING.

36 H. FOR THE PURPOSES OF THIS SECTION:

37 1. "APPLICATION" MEANS ANY OF THE FOLLOWING FOR SINGLE-FAMILY
38 RESIDENTIAL DEVELOPMENT:

- 39 (a) A SITE PLAN.
- 40 (b) A DEVELOPMENT PLAN.
- 41 (c) A LAND DIVISION.
- 42 (d) A LOT LINE ADJUSTMENT.
- 43 (e) A LOT TIE.
- 44 (f) A PRELIMINARY OR FINAL PLAT.
- 45 (g) A PLAT AMENDMENT.
- 46 (h) A BUILDING PERMIT.

1 Sec. 4. Legislative findings

2 The legislature finds and declares that the purpose of section
3 12-1139, Arizona Revised Statutes, as added by this act, is to ensure that
4 actions in which a plaintiff asserts a malicious delay property claim
5 pursuant to section 9-500.54 or 11-269.31, Arizona Revised Statutes, as
6 added by this act for a single-family residential application is resolved
7 in a timely and efficient manner to prevent undue harm resulting from
8 prolonged uncertainty.

9 Enroll and engross to conform

10 Amend title to conform

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